Preamble of the Constitution

1. Meaning, origin and four ingredients

- **Preamble:** introductory statement of the Constitution's philosophy, purposes and ideals; **N.A. Palkhivala—identity card of the Constitution**. The US Constitution (1787) is an influential early example of a constitutional preamble.
- Based on **Nehru's Objectives Resolution**, moved **13 December 1946**, adopted **22 January 1947**.
- Four ingredients: **source—people; nature—Sovereign Socialist Secular Democratic Republic; objectives—Justice, Liberty, Equality, Fraternity; adoption—26 November 1949**.
- **Adoption ≠ general commencement:** 26 November 1949 versus **26 January 1950**; some provisions commenced earlier.
- **42nd Amendment Act, 1976:** inserted **Socialist, Secular and Integrity**. Original wording was “Sovereign Democratic Republic” and “unity of the Nation”.



The Preamble identifies authority, State character, goals and adoption.

2. Preamble: complete text

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION**.

Official Constitution

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3. Sovereign

- India controls its **internal affairs and external relations**; no foreign power is its constitutional superior. Sovereignty does not erase voluntarily undertaken international obligations.
- **Commonwealth membership (1949)** does not diminish sovereignty: the British Crown is symbolic head of the association, not India's head of State. **UN membership (1945)** likewise does not surrender sovereignty.
- India may acquire territory; cession of Indian territory requires the applicable constitutional process—sovereignty does not authorise the executive to disregard the Constitution.
- **15 August 1947–26 January 1950:** independent Dominion; **26 January 1950:** republic. Pakistan remained a Dominion until **1956**.

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4. Socialist

- Indian approach: **democratic socialism**, social/economic justice, welfare and reduction of inequality, with **public and private sectors coexisting**. It does not require compulsory abolition of all private property or enterprise.
- Socialist goals were present in **DPSPs before 1976**; Congress's **Avadi session (1955)** endorsed a socialistic pattern of society.
- Aim: reduce **poverty, ignorance, disease and unequal opportunity**; improve disadvantaged groups' conditions. **D.S. Nakara v. Union of India (reported 1983)** and **G.B. Pant University v. State of UP (2000)** connect socialism with welfare and social justice.
- Textbook describes a blend of **Marxist and Gandhian influences**, leaning towards Gandhi; this is an interpretation, not a mandatory constitutional economic blueprint.
- **1991 liberalisation, privatisation and globalisation** changed economic policy; they did not remove “Socialist” from the Preamble.
- **Balram Singh v. Union of India (2024):** welfare, equality of opportunity and social/economic upliftment are compatible with private entrepreneurship; elected governments retain economic-policy choices within constitutional limits. Supreme Court

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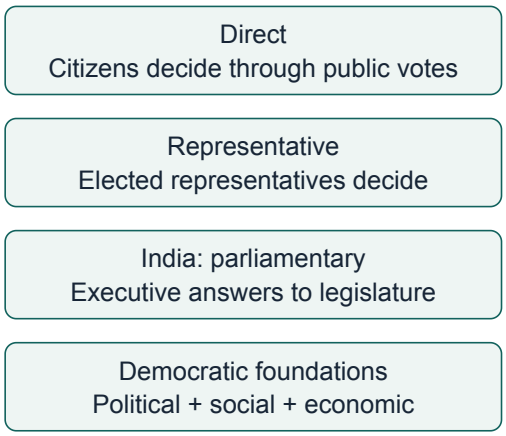
5. Secular

- **No religion of the State; equal freedom and protection across religions**. Secular principles existed before the word was inserted in **1976**; judicial recognition also predates insertion.
- **H.R. Gokhale:** equal respect for religions. **P.B. Gajendragadkar:** equal religious freedom without State allegiance to a particular religion.
- Freedom of conscience, profession, practice and propagation is subject to constitutional limits; the State may regulate secular activities and undertake social reform.
- **Secular ≠ atheistic:** a secular State does not require rejection of religion. **Theocracy** means religious authority governs; merely having an official religion does not establish that every such country is a theocracy.

- **Secularism is part of basic structure**; equal citizenship includes believers and non-believers. Articles **25–28** regulate religious freedoms/taxation/instruction; **14–16** and minority protections reinforce the framework.

6. Democratic

- **Popular sovereignty:** ultimate authority rests with the people. Greek roots: **demos—people; kratia—rule**.
- **Direct democracy:** people decide themselves. **Representative democracy:** elected representatives decide; parliamentary and presidential systems are its major forms.
- **Switzerland** combines representative institutions with extensive direct-democracy mechanisms; calling it purely direct is misleading.
- Direct-democracy devices: **referendum—public vote on a proposal/law; initiative—citizens trigger a proposal through prescribed procedures; recall—voters remove an elected official before the term ends; plebiscite—public vote on an important issue, often territorial**. Referendum/plebiscite terminology can overlap.
- India: **representative parliamentary democracy**; real executive is accountable to the legislature. **Adult franchise, periodic elections, rule of law, independent judiciary and non-discrimination** support it.
- "Democratic" extends to **social and economic democracy**, beyond periodic political voting.
- **Ambedkar, 25 November 1949:** liberty, equality and fraternity form an inseparable trinity. Liberty without equality lets a few dominate; equality without liberty stifles initiative; fraternity binds both into social life.
- An egalitarian social order and effective opportunity for disadvantaged groups give democracy substance.



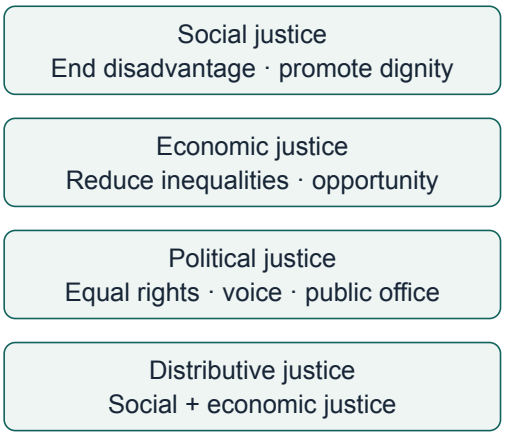
Popular sovereignty needs institutions and social equality.

7. Republic

- **Head of State is elected, not hereditary**. India's President is **indirectly elected for five years**; republic does not imply direct popular presidential election.
- Political sovereignty belongs to the **people**, not a monarch; public office is open on equal constitutional terms, without hereditary privilege.
- **Democracy and republic answer different questions:** democracy concerns popular rule; republic concerns a non-hereditary head of State. UK is a democracy with a monarchy; India and USA are republics. Being a republic alone does not guarantee democracy.

8. Justice: three dimensions

- **Social:** remove caste, race, colour, religion and sex-based disadvantage; uplift **SCs, STs, other disadvantaged groups and women**. Protective/affirmative measures can advance equality.
- **Economic:** reduce inequalities of income, wealth and property; improve material opportunity and prevent exploitation.
- **Political:** equal political rights, access to public office on constitutional terms and opportunity to influence public affairs.
- **Social + economic justice = distributive justice**. Fundamental Rights and DPSPs provide complementary tools.
- Chapter conventionally traces the social/economic/political justice ideal to the **Russian Revolution (1917)**.



The three dimensions of justice reinforce one another.

9. Liberty

- Five fields: **thought, expression, belief, faith and worship**. Liberty includes freedom from undue restraint and conditions for personal development.
- **Liberty is not licence:** rights operate within constitutional limits; restrictions differ by right and must satisfy constitutional requirements.
- **Liberty, Equality, Fraternity** are associated with the **French Revolution (1789–1799)**.

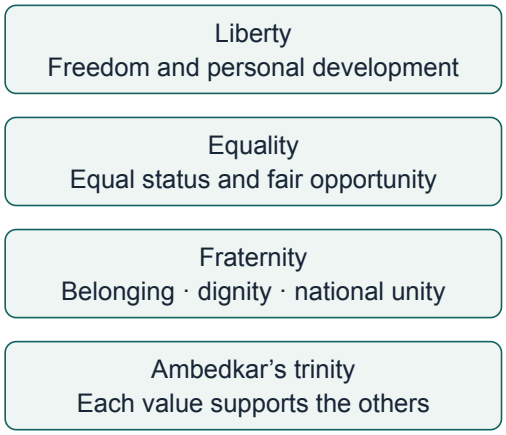
10. Equality

- Two promises: **equality of status and of opportunity**—absence of special privilege plus fair opportunity to develop abilities.
- **Civic equality:** Articles **14–18**—equality before law, non-discrimination, public-employment equality, abolition of untouchability and abolition of titles subject to constitutional exceptions.
- **Political equality: 325**—one general electoral roll without exclusion solely on religion, race, caste or sex; **326**—adult suffrage, subject to constitutional qualifications/disqualifications.
- **Economic equality: 39(a)**—adequate livelihood for men and women equally; **39(d)**—equal pay for equal work for men and women. These are DPSPs, not independently enforceable Fundamental Rights.

- Equality does not require identical treatment irrespective of disadvantage; constitutionally valid affirmative action can secure substantive equality.

11. Fraternity

- **Brotherhood and mutual belonging**; single citizenship helps national integration.
- Two aims: **dignity of the individual** and **unity and integrity of the Nation**. “Integrity” inserted by **42nd Amendment (1976)**.
- **51A(e):** harmony/common brotherhood across religious, linguistic, regional and sectional differences; renounce practices derogatory to women's dignity. **51A(c):** uphold/protect sovereignty, unity and integrity.
- **K.M. Munshi:** dignity recognises the worth of each personality; democracy is more than material well-being.
- National unity has **territorial and psychological** dimensions; Article **1's Union of States** allows no State right to secede.
- Fraternity counters **communalism, casteism, hostile regional/linguistic divisions and secessionism**, while respecting India's diversity.



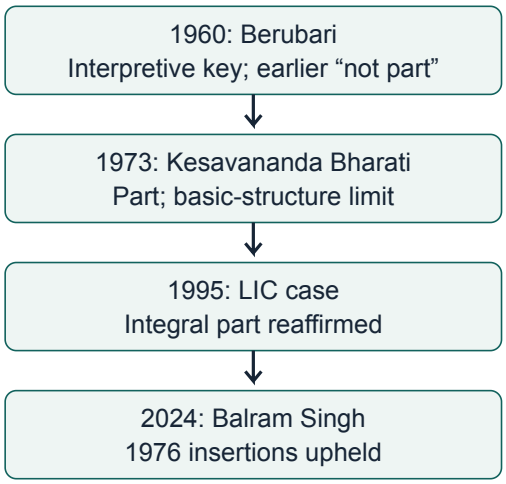
Liberty, equality and fraternity work together.

12. Significance and memorable descriptions

- **Alladi Krishnaswami Ayyar:** Preamble expresses the Assembly's long-considered aims.
- **K.M. Munshi:** horoscope of the sovereign democratic republic.
- **Thakur Das Bhargava:** soul of the Constitution; key to it; jewel; yardstick for judging constitutional worth.
- **Ernest Barker:** keynote to the Constitution; reproduced it in **Principles of Social and Political Theory (1951)**.
- **M. Hidayatullah:** declaration and pattern of political society, capturing the Constitution's soul. His rhetorical praise must not be read as a legal prohibition on amendment.
- It explains constitutional purpose and guides interpretation, especially where language is ambiguous; it cannot independently override clear operative provisions or create unlimited government power.

13. Is it part of the Constitution? Can it be enforced?

- **Berubari Union reference (1960):** Article **143** advisory reference concerning the **1958 India–Pakistan agreement** on territory/enclaves. Treated the Preamble as an interpretive key but **not part of the Constitution**—the earlier view.
- **Kesavananda Bharati v. State of Kerala (1973):** rejected that earlier view; Preamble **is part of the Constitution**, illuminating its ideals and basic structure.
- **LIC of India v. Consumer Education and Research Centre (1995):** affirmed that it is an integral part.
- Constituent Assembly considered the Preamble after settling the Articles and adopted the motion that it **stand part of the Constitution**; this does not mean it was outside the Constitution.
- **Non-justiciable by itself:** no independent cause of action merely for an unfulfilled Preamble promise. No independent grant of legislative power or separate prohibition on legislative power.
- **Still legally significant:** enforceable rights and basic-structure review draw on its values. “We, the People” identifies authority's ultimate source, not a free-standing power to legislate.



Read the judicial position in sequence; the 1960 view is historical.

14. Amendment and basic structure

- **Article 368** permits amendment of the Preamble, subject to **basic structure**. Amendable does not mean Parliament can destroy its foundational constitutional values.
- **Only amendment so far: 42nd (1976)**—Socialist, Secular, Integrity. Adoption date **26 November 1949** was retained.
- **Balram Singh (25 November 2024):** rejected the challenge to inserting “Socialist” and “Secular”; amendment power extends to the Preamble, and the adoption date does not freeze its wording. Constitutional/basic-structure limits continue.
- Avoid both extremes: **“Preamble cannot be amended”** and **“every word can be changed without limits”**.

15. One-minute recall and answer structure

- **Four ingredients:** People → State's nature → Objectives → Adoption.

- **Five State descriptors:** Sovereign, Socialist, Secular, Democratic, Republic.
- **Four objectives:** Justice, Liberty, Equality, Fraternity. Justice **3**; liberty **5**; equality **2**; fraternity's assurances **2**.
- **1976 additions: S–S–I**. **1960 → 1973 → 1995:** earlier exclusion → part of Constitution → integral part reaffirmed.
- **Part of Constitution; interpretive; not independently enforceable; amendable with basic-structure limits.**
- **Mains:** introduce popular sovereignty → explain values with constitutional examples → state legal position → connect dignity, welfare and national integration.